DIVISION BENCH
COURT - I

O-216

NATIONAL COMPANY LAW TRIBUNAL
KOLKATA BENCH
KOLKATA

C.P.(CAA)/960(KB)2019
IA(COMPANIES.ACT)/73(KB)2023

CORAM: 1. HON'BLE MEMBER(J), SHRI ROHIT KAPOOR.
2. HON'BLE MEMBER(T), SHRI BALRAJ JOSHI

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING ON 04TH JULY, 2023, 10:30 A.M

IN THE MATTER OF	**ORISSA METALIKS PVT. LTD.**
UNDER SECTION	**SEC. 230-232, SEC 234**

Appearances (via video conferencing/virtually)

Mr. Shaunak Mitra, Adv. : For Applicant Company
Mr. Sidhartha Sharma, Adv.
Mr. Rishav Dutt, Adv.
Ms. Shalini Basu, Adv.

O R D E R

1. Ld. Counsel for the Applicant Company present.
2. **IA(COMPANIES.ACT)/73(KB)2023**
   i. Ld. Counsel appearing for applicant has filed an affidavit of service placing on record copy the of e-mail and delivery confirmation report of service upon State of Odisha through the Additional Chief Secretary to Government, Steel & Mines Department, Government of Odisha, Bhubaneswar.
   ii. Ld. Counsel has drawn our attention to the e-mail (supra) at page 4 wherein the date of hearing before NCLT, Kolkata Bench i.e. 4th of July, 2023 was also mentioned.
   iii. Today, none appears for the respondents. Ld. Counsel while pressing for grant of relief, has also drawn our attention to page147 of this IA which is an order passed by Hon'ble High Court of Orissa at Cuttack on 20th July, 2022 in W.P (C) No. 17199 of 2022 wherein Ld. Additional Standing Counsel made the following statement;

"Mr. S. Rath, learned Additional Standing Counsel contended that if the Petitioners claim benefits in terms of the order passed by the

NCLT, it is open to them to approach the appropriate forum for non compliance to the order of the Tribunal. The claim of the Petitioners for acquisition of land cannot be adjudicated by invoking the jurisdiction under Articles 226 and 227 of the Constitution of India."

iv. Before proceeding further, we deem it proper to afford an opportunity of being heard the respondents. Registry is directed to issue fresh notice to respondents by speed post and e-mail therein informing the next date of hearing, for appearance before this Adjudicating Authority on **31/07/2023**. Dasti service is also permitted. Ld. Counsel appearing for the applicant undertakes to serve a copy of this order by hand upon the office of respondents. Let a copy of this order be also served upon office of Ld. Additional Standing Counsel for the State of Odisha.

v. In the event of Dasti notice served upon as directed above, an affidavit of service be filed by the applicant. It is made clear that upon service, if there is no representation on behalf of the respondents, appropriate orders will be passed.

vi. Post this matter on **31/07/2023**.

Balraj Joshi
Member (Technical)

Rohit Kapoor
Member (Judicial)

zia